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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

NELSON DIAMOND and CAROL DIAMOND,

Plaintiff,

vs.

MARMALADECAFE LLC, MARMALADE, LLC, MARMALADE NEW WORLD CAFE LTD. LIABILITY COMPANY, and DOES
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Defendants.

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CASE NO.: 25VECV03699

ORDER DENYING DEFENDANT MARMALADE, LLC D/B/A MARMALADE CAFÉ ERRONEOUSLY SUED AS MARMALADE NEW WORLD CAFÉ LTD.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I. BACKGROUND

Plaintiffs Nelson Diamond ("Nelson") and Carol Diamond ("Carol") (jointly "Plaintiffs") bring this premises liability action against Defendants Marmalade Holdings, Inc., and Marmalade, LLC d/b/a Marmalade Café, erroneously named as Marmalade New World Café Ltd. Liability Company ("Marmalade") (collectively, "Defendants"). Plaintiffs allege Defendants negligently maintained their property so as to cause Plaintiffs to trip and fall on a dirt hole in the patio dining area.

On February 26, 2026, the Court dismissed Marmalade, LLC, without prejudice at Plaintiffs' request.

On September 16, 2026, the Court dismissed Defendant Marmalade Holdings, Inc., with prejudice at Plaintiffs' request before the Court posted its tentative on its then-pending Motion for Summary Judgment, or in the alternative, Summary Adjudication. Therefore, the Court will not address that Motion.

Marmalade's Motion for summary judgment is now before the Court.

II. PROCEDURAL HISTORY

On July 3, 2025, Plaintiffs filed a Complaint alleging (1) Negligence and (2) Premises Liability.

On December 5, 2025, Defendants filed an Answer.

On February 26, 2026, the Court dismissed Marmalade, LLC.

On June 29, 2026, Marmalade filed a Motion for Summary Judgment and Marmalade Holdings, Inc., filed a Motion for Summary Judgment or in the alternative, Summary Adjudication.

On August 28, 2026, Plaintiffs filed an Opposition to Marmalade's Motion for Summary Judgment.

On September 4, 2026, Marmalade filed a Reply.

On September 16, 2026, the Court dismissed Marmalade Holdings, Inc. with prejudice.

III. LEGAL STANDARD

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (See Code Civ. Proc. § 437c(c);[1] *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) As to each claim as framed by the complaint, a defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate or establish an essential element. (See *Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) A motion for summary judgment must be denied where the moving party's evidence does not prove all material facts, even in the absence of any opposition. (See *Leyva v. Superior Court* (1985) 164 Cal.App.3d 462, 475; *Salesguevara v. Wyeth Labs., Inc.* (1990) 222 Cal.App.3d 379, 384.)

Once the moving party has met its burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material fact exists to a cause of action or a defense thereto. (See Code Civ. Proc. § 437c(o)(2).)

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IV. JUDICIAL NOTICE

Judicial notice is not required of matters already in an instant case's docket. Notwithstanding, the Court will grant Defendants' request for judicial notice of the Complaint.

V. MARMALADE'S MOTION IS DENIED

1. Evidentiary Objections

The Court rules as follows on Marmalade's objections to the Declaration of Philip L. Rosescu, P.E., M.S.:

Sustained: Nos. 2, 3, 5, and 7-11.

Overruled: Nos. 1, 4, and 6.

2. Moving Defendants' Undisputed Material Facts

Plaintiffs allege they sustained injuries at Marmalade Café, operated by Marmalade, located at 4783 Commons Way, Suite E, Calabasas, California 91302 on May 9, 2024. (See UMF No. 1, 30.) Plaintiffs' negligence and premises liability claims allege before they sat down at their table, Carol tripped on the subject condition—a dirt hole—causing Nelson to fall when he tried to prevent her fall. (See id., Nos. 2-8.)

Carol was in the walkway, past the alleged condition, before she turned around. (See id., Nos. 11-12.) Nelson had not yet reached the alleged condition when Carol had already walked past it. (See id., No. 13.) When Nelson stopped, the alleged condition was approximately one foot in front of him and to his left. (See id., No. 14.) When Carol turned to look for Nelson immediately before the fall, she was not looking down. (See id., No. 15.) Nelson did not step into or fall into the alleged condition. (See id., No. 27.) Nelson attempted to catch Carol as she was falling but could not catch her because of the momentum of her fall, which pushed Nelson backward and caused him to fall. (See id., Nos. 28-29.) Plaintiffs had no knowledge that anyone else had fallen into the alleged condition before her accident. (See id., Nos. 22-23.)

Before the May 9, 2024, incident, Marmalade had received no prior complaints or had records of injury concerning the alleged patio condition. (See id., Nos. 24-25.) Before the May 9, 2024, incident, no employee, manager, customer, vendor, or third party reported to Marmalade the alleged patio condition posed a tripping hazard. (See id., No. 26.)

The restaurant includes an outdoor flagstone patio dining area. (See id., No. 31.) The condition Plaintiffs describe as a "dirt hole in the patio dining area" is a tree well/circular depression in the patio remaining from the removal of a patio tree. (See id., No. 32.)

Marmalade regularly inspects its outdoor patio area as part of its normal operations, and before the May 9, 2024, incident, those inspections did not identify the area described by Plaintiffs as unsafe, hazardous, or in need of repair or warning. (See id., No. 38.) Before May 9, 2024, Marmalade had no record of any request, work order, or directive to repair, fill, cover, barricade, or warn about the patio condition identified by Plaintiffs. (See id., No. 39.) The May 9, 2024, incident was the first complaint or report of any kind that Marmalade received concerning the area of the patio identified by Plaintiffs. (See id., No. 40.) Exhibit A to the Arnold Declaration is a photograph of the subject tree well taken on May 9, 2024, shortly after the incident, and it accurately depicts the tree well. (See id., No. 41.)

3. Plaintiff's Additional Material Facts

Plaintiffs were led to their table by a host, with Carol walking in front of Nelson. (See Plf.'s Add.'l Material Facts ("AMF"), No. 45.) When they arrived at the table, Carol then turned around to her left to face Nelson behind her. As she turned and stepped towards Nelson, her right foot fell into a circular dirt hole in the patio area she had not seen. (See id., Nos. 46-47, 55.) Nelson had not reached the hole yet and was about one foot from it. (See id., No. 48.) Nelson fell when Carol fell forward onto him. (See id., Nos. 49-51.)

No verbal warning by a Marmalade employee was given to Plaintiffs regarding the hole and no visual warning or signage was present to warn of the hole or instruct diners to walk a particular path or direction within the patio area. (See id., No. 56.) The dirt in the hole was not backfilled flush with the surrounding landscape, creating an approximate 1- to 2-inch height differential between the dirt surface and the surrounding grade. (See id., No. 57.) Only a tree stump and small unused electrical box remained in the dirt hole. (See id., No. 58.) The dirt and tree stump within the hole were both a similar brownish color to the flagstone of the patio and was shaded. (See id., Nos. 59-60.)

About six months before the incident, Director of Operations, Lindsay Arnold, the restaurant manager, and the landlord engaged in discussions of options to address the hole, including simply covering it with the same type of flagstone that existed on the patio area. This work was never performed prior to the date of the incident. (See id., No. 62.) After Plaintiffs fell and were injured, Marmalade, LLC filled the hole with bright, contrasting white rocks and a large potted plant. (See id., No. 63.) Marmalade, LLC did not need approval from the landlord to fix the area as it did. (See id., No. 64.)

4. Negligence and Premises Liability Causes of Action

The elements of a cause of action for negligence and for premises liability are the same: a duty of care, a breach of such duty, an injury, and the breach as the proximate cause of such injury. (See *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1207.) "The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) "To comply with this duty, a person who controls property must inspect [the premises] or take other proper means to ascertain their condition and, if a dangerous condition exists that would have been discovered by the exercise of reasonable care, has a duty to give adequate warning of or remedy it." (*Staats v. Vintner's Golf Club, LLC* (2018) 25 Cal.App.5th 826, 833.)

"[B]reach of duty is usually a fact issue for the jury. If the circumstances permit a reasonable doubt whether the defendant's conduct violates the standard of due care, the doubt must be resolved by the jury as an issue of fact rather than of law by the court. Like breach of duty, causation also is ordinarily a question of fact which cannot be resolved by summary judgment. The issue of causation may be decided as a question of law only if, under undisputed facts, there is no room for a reasonable difference of opinion." (*Nichols v. Keller* (1993) 15 Cal. App. 4th 1672, 1687.)

Marmalade argues there was no duty of care because the tree well was open and obvious and it was not necessary for Plaintiffs to encounter it. (See Mot. at 11:8-17; Reply 4:8-9, 5:18-25.) Marmalade submits evidence in the form of a photograph of the tree well. (See UMF, No. 41.) The image depicts Carol's legs with her two feet inside the tree well. The tree well is a circular depression in the ground containing a tree stump, dirt, a few weeds, and a metal box fixture. Marmalade cites *Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 40, 50, in support of its position the tree well was an open and obvious condition. (See Mot. at 11:22-24.) Second, Marmalade also argues there was no breach. (See Mot. at 12: 18.) Marmalade submits the undisputed facts that Carol had already walked past the tree well in approaching their table and that from Nelson's position, the tree well was to his left. (See UMF Nos. 12-14.) On these facts, Marmalade argues it had no liability to ensure that a patron who had already walked past a visible condition would not step into it if she turned around while not looking at the ground. (See Mot., at 12:18-24; Reply at 4:13-16.) Marmalade also submits the undisputed fact its inspections had not identified the tree well as unsafe. (See Mot., at 13:1-3; UMF No. 38.)

Third, Marmalade argues Plaintiffs' claims fail for lack of notice. (See Mot. at 13:4-7, citing *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206-1207.) Marmalade submits evidence showing they had received no complaints about the tree well, recorded a prior accident, or received notice of its potential danger from any employee, manager, customer, or otherwise. (See UMF Nos. 22-26.) Fourth, Marmalade argues causation cannot be established because but for Carol voluntarily turning

around and failing to look down, she would not have tripped on the tree well. (See Mot. at 14:15-26; UMF No. 11-12, 15.)

Fifth, Marmalade argues Nelson's claim fails because he did not contact the tree well and his claim is derivative of Carol's. (See Mot. at 15:4-6; Reply at 9:26-10:5 UMF Nos. 27-29.)

"Whether a duty should be imposed on a defendant [in a premises liability action] depends on a variety of policy considerations, known as the Rowland factors." (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 446.) The "most important" of these considerations or factors is "the foreseeability of injury to another." (Osborn v. Mission Ready Mix (1990) 224 Cal.App.3d 104, 122) "Foreseeability of harm is typically absent when a dangerous condition is open and obvious." (Id., at 447.) "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (Montes v. Young Men's Christian Assn. of Glendale, Cal. (2022) 81 Cal.App.5th 1134, 1140.) "There may be a duty of care owed even where a dangerous condition is open and obvious when 'it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it).'" (Id.)

In *Chance v. Lawry's, Inc.* (1962) 58 Cal.2d 368, 372-373, the Supreme Court rejected Lawry's argument the planter box located in the foyer at the entrance to its restaurant "was so obvious that [defendant] could reasonably anticipate that patrons would see and apprehend the danger [of losing their balance and falling into the planter box as did plaintiff]." (Id., 58 Cal.2d at 374.) The Supreme Court stated: "Whether the danger created by the open planter box was sufficiently obvious to relieve Lawry's of its duty to warn [the plaintiff] of its existence was peculiarly a question of fact to be determined by the jury." (Id.) In *Chance*, the Supreme Court also rejected defendant's argument plaintiff was contributorily negligent because if she had looked, they would have seen the planter box. (See id., 58 Cal.2d at 374-375.) The Supreme Court reasoned: "It cannot be said as a matter of law that Mrs. Chance was contributively negligent for not seeing the planter box or in not looking back before she stepped backward... Whether she made a reasonable use of her faculties and acted as a reasonable person, under the circumstances, was a factual question for the jury's determination." (Id., 58 Cal.2d at 375.)

The Court will deny Marmalade's Motion. The Court finds Marmalade does not meet its burden of showing the tree well Carol tripped on was open and obvious or not necessary to encounter as a matter of law. Marmalade's evidence on the open and obvious issue is one photograph. (See UMF, No. 41.) The Court finds this single photograph insufficient to meet Marmalade's burden. While this photograph offers a close-up of the tree well on the ground there are no other photographs depicting other vantage points including Plaintiffs' eye-level as they approached their table or a more distant perspective showing where the tree well lies in relation to surrounding tables. [2] This single photograph is also insufficient to show the tree well wasn't necessary to encounter, as the photograph's close-up image of the tree well does not establish it was not located on any path leading to any table patrons walked to and from upon arrival, departure, to use the restroom, or for other reasons. This photograph only depicts the base of one table. Finally, the Court is unclear on whether this was the table Plaintiffs were walking to so as to have a perspective on their path to their table as there is no undisputed material fact on this point.

Assuming *arguendo* Marmalade met its burden on these issues, Plaintiffs raise triable issues on the issue of open/obvious and necessity. Plaintiffs' evidence includes more photographs with a few additional perspectives from which a trier of fact could conclude that the tree well is not open and obvious to a patron approaching their dining table because it blends in with the stone covered floor in the patio and is in the center of various tables. (See Disputed Fact ("DF"), No. 10; Opp at 12:8-14.) As to the issue of necessity, the Court also finds a trier of fact could find based on Plaintiffs' photographs showing the tree well is located in the middle of several tables and evidence there is no one single path to reach the table, that the tree well could have been necessarily encountered any time a patron approached or left the table. (See DF, Nos. 9-10; AMF No. 45; Opp. at 12:15-24.) Thus, the Court finds Marmalade has not established its open and obvious defense to negate duty as a matter of law.

The Court also finds Marmalade does not negate lack of notice. "Because the owner is not the insurer of the visitor's personal safety [citation], the owner's actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner's lack of knowledge is not a defense, '[t]o impose liability for injuries suffered by an invitee due to [a] defective condition of the premises, the owner or occupier 'must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises....'" (Ortega, 26 Cal.4th at 1206 [internal citation omitted, emphasis added].) Marmalade's undisputed facts establish it was on notice of the tree well, including through its own

inspections; it just did not have notice of any prior accidents or was informed that the tree well posed a trip and fall hazard. (See UMF, No. 38-40.) However, it is not dispositive that Marmalade was not informed that the tree well posed a risk. The Court finds Marmalade there are triable issues of fact as to whether it should have reasonably appreciated the risk the tree well posed to patrons as it knew of the existence of the tree well, its proximity to tables, that the well itself and its contents were clearly not level with the stone floor, and that it was not visually demarcated by anything so as to alert passerby. (See Opp. at 15:5-6; cf. Jones v. Awad (2019) 39 Cal.App.5th 1200 [plaintiff didn't establish a discernible feature of the garage steps that would notify defendants of an unreasonable risk of harm or any prior incidents that would alert defendants to a dangerous condition's existence].)

Assuming *arguendo* Marmalade did meet its burden on this issue, Plaintiffs raise triable issues showing the tree well posed a risk. (See AMF Nos. 55, 57.) In addition to the photographs depicting the tree well and its contents, Plaintiffs submitted the affidavit of Philip L. Rosescu, a Licensed Professional Engineer in the discipline of Civil Engineering and has extensive experience evaluating trip-and-fall incidents involving walkway surface discontinuities and changes in level. (See *id.*) Rosescu attests the tree well possessed "an approximate 1- to 2-inch height differential between the dirt surface and the surrounding grade" which was "large enough to cause a misstep". (See *id.*) This evidence shows that the tree well was depressed by a certain number of inches that sufficiently posed a trip risk.

As to Marmalade's argument Carol caused her own injury by failing to look down to observe the ground when she turned around, Chance is on point. In Chance, the Supreme Court also rejected a similar argument that "[the plaintiff] was contributively negligent for not seeing the planter box or in not looking back before she stepped backward." (See Chance, 58 Cal.2d 368, at 374-75.) The Supreme Court reasoned: "It cannot be said as a matter of law that [plaintiff] was contributively negligent for not seeing the planter box or in not looking back before she stepped backward...Whether she made a reasonable use of her faculties and acted as a reasonable person, under the circumstances, was a factual question for the jury's determination." (*Id.*, at 375.) Accordingly, the question of the extent to which Carol was contributively negligent in her fall, is at least a jury question, as the Court cannot find that it can only draw the single inference from the undisputed evidence that Carol was solely responsible for her fall.

For the reasons above, the Court also finds Marmalade does not meet its burden in negating Nelson's claims based on the argument they necessarily fail because Carol's fail.

Based on the foregoing, the Court DENIES Marmalade's Motion for Summary Judgment or, in the alternative, Summary Adjudication.

VI. CONCLUSION

The Court DENIES Marmalade's Motion for Summary Judgment or, in the alternative, Summary Adjudication.

IT IS SO ORDERED.

DATED: September 21, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] The Court may, in appropriate circumstances, determine a condition is open and obvious where “photographs prima facie established the obviousness” of the condition. (Martinez, 121 Cal.App.4th at 1184.) In examining photographs, the court should consider: (1) the photograph’s subject (i.e., its focal point); (2) the view of the subject (e.g., close-up, distant isolated, in context); (3) the photograph’s perspective (e.g., eye-level, overhead, ground-level); (4) the use of any plain-view altering devices (e.g., camera color filter, fish-eye lens, computer-manipulation); (5) the characteristics of the photograph (e.g., sharp and clear, blurry, grainy, color or black and white); (6) whether the photograph was taken under identical or substantially similar conditions (e.g., timing, lighting, weather); and (7) any other relevant circumstances (e.g., addition of extrinsic aids, such as a ruler or pointer). (Kasparian v. AvalonBay Communities, Inc. (2007) 156 Cal.App.4th 11, 24-25.)